

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JONATHON COLLIS,

Petitioner

VS.

JUSTIN K. O'NEILL,

Respondent

) Case Number: FLD-22-396898

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner Jonathon Collis (Father) and Respondent Justin K. O'Neill (Mother).

There is one minor child subject to this proceeding: Juniper Collis-O'Neill (DOB: 04/17/15).

2) On February 23, 2026, Mother filed a Request for Order seeking to modify the existing child custody and visitation orders. Father presently has sole legal and sole physical custody. (See Child Custody and Visitation Stipulation and Order filed 03/07/24.) Mother has parenting time with the minor child every other week from Thursday after school until Saturday at 5:00 p.m. and on alternate weekends (when there is no overnight parenting time) Mother picks up Juniper Friday after school for two hours of parenting time, including walking her home. (See 04/15/25 Findings and Order After Hearing (FOAH).) Mother requests the following modifications:

a. Joint legal and joint physical custody; and

b. Week on/week off schedule.

3) On March 11, 2026, Mother filed a Proof of Personal Service indicating Father was personally served with her motion on March 30, 2026 at 9:00 a.m.

1 4) On March 30, 2026, the parties appeared at Readiness Calendar and the Court referred them to
2 Family Court Services (FCS) Mediation on April 21, 2026 and set a return hearing for May 5,
3 2026.

4 5) On April 27, 2026, Mother filed a supplemental declaration, which has been read and considered
5 by this Court.

6 6) As of April 30, 2026, Father had not filed any responsive pleadings.

7 **B. Findings and Order**

8 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
9 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
10 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
11 child(ren) is the United States.

12 2) Mother's request to modify child custody to joint legal and joint physical custody is GRANTED.

13 3) Mother's request to modify the existing parenting plan is GRANTED.

14 4) Commencing May 10, 2026, Mother and Father's parenting time with the minor child shall occur
15 on a week on/week off schedule. Exchanges of the minor child shall be every Sunday at 5:00 p.m.

16 5) Mother's first weekend will start on Sunday, May 10, 2026 at 5:00 p.m., and continue through
17 Sunday, May 17, 2026 at 5:00 p.m., at which point, Father's week will commence. The parties
18 shall alternate each week, thereafter.

19 6) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.

20 7) The Court will prepare the Findings and Order After Hearing.
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